

Protecting your marca

Trademark is the cheapest insurance in this file set, and the one most houses buy too late.

01 MEXICO · IMPI

A precondition, not paperwork. The CAET export certificate cannot be issued without your registered marca. If a third party distils your brand, the IMPI-validated Convenio de Corresponsabilidad is required too.

02 INDIA · CLASS 33

File before buyers see your name. Phase 4 puts your brand in front of importers, distributors and hotels. File in Class 33 (alcoholic beverages) before that happens.

Two routes: a direct national filing in India, or the Madrid Protocol through IMPI designating India. Registration takes months; protection dates from the filing date, which is why filing early wins even before the certificate arrives.

Cover the flanks: consider Class 32 (non-alcoholic, for RTD and mixer extensions) and Class 35 (retail and trade services). Discuss with counsel; do not over-buy classes you will never use.

03 THE SQUATTING SCENARIO

How it happens. A distributor you met, or a stranger watching launch news, files your name first. India examines and publishes applications; oppositions and recovery run through tribunals and take years.

Why Phase 4 raises the stakes. The moment your brand circulates in buyer rooms and tasting events, its visibility, and its squatting value, jumps. File before the exposure, not after.

04 WHAT TO PREPARE FOR COUNSEL

The pack: your wordmark and label device, the owning entity's details, the classes to cover, any prior use or sales evidence in India, and your IMPI registration certificate.

What MIBC does: connects you to vetted counsel, aligns the India filing with your Convenio and CAET paperwork, and tracks status through the programme so filing does not stall at a busy quarter.

THE POINT

If your India status is 'not filed' or 'need guidance', start this week. MIBC connects you to counsel; the cost is small now and enormous later.